

Smt. Sweta Singh vs Manoj Kumar on 7 August, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:133615

Court No. - 37

Case :- TRANSFER APPLICATION (CIVIL) No. - 249 of 2022

Applicant :- Smt. Sweta Singh

Opposite Party :- Manoj Kumar

Counsel for Applicant :- Krishna Dutt Tiwari

Counsel for Opposite Party :- Mohit Sharan Tomar, Sanjay Kumar Dubey

Hon'ble Chandra Kumar Rai, J.

1. Heard Mr. Krishna Dutt Tiwari, learned counsel for the applicant and Mr. Mohit Sharan Tomar, learned counsel for the opposite party.
2. Brief facts of the case is that the applicant is wife and opposite party is husband. Proceeding under Section 13 of Hindu Marriage Act has been initiated at the instance of opposite party/ husband in the Family Court, Hathras.
3. The instant transfer application has been filed with the prayer to transfer the Case No.626 of 2021 (Manoj Kumar Vs. Smt. Sweta Singh) under Section 13 -A of Hindu Marriage Act from the Court of Principle Judge, Family Court, Hathras to Principle Judge, Family Court, Moradabad.
4. This Court entertained the matter on 29.4.2022 and stayed the further proceeding of the Case. The order dated 29.4.2022 is quoted as under:

"Heard learned counsel for the applicant.

This is transfer application seeking transfer of Case No. 626 of 2021 (Manoj Kumar Vs. Smt. Sweta Singh), under Section 13 of Hindu Marriage Act, 1955 from Principal Judge, Family Court, Hathras to Principal Judge, Family Court, Moradabad.

Learned counsel for the applicant submitted that applicant is wife of opposite party and residing at District Moradabad. He next submitted that it is very difficult for her to attend the Court proceedings at District Hathras, which is at a distance of about 170 kilometers from District Moradabad, therefore, the aforesaid case may be transferred to District Moradabad.

Matter requires consideration.

Issue notice to the opposite party returnable within six weeks.

Steps be taken within one week.

List this case on 08.07.2022.

Till the next date of listing, proceeding of the aforesaid case shall remain stayed. "

5. Learned counsel for the applicant submitted that in view of the averment made in paragraph nos.5 to 10 of the affidavit filed in support of the instant transfer application, the proceeding under Section 13 of Hindu Marriage Act should be transferred from Hathras to Moradabad.

6. Learned counsel for the opposite party submitted that the opposite party has no objection to the prayer made by the applicant to transfer the proceeding of divorce petition from Hathras to Moradabad.

7. I have considered the argument advanced by learned counsel for the parties and perused the records.

8. There is no dispute about the fact that the proceeding under Section 13 of Hindu Marriage Act is pending before Family Court, Hathras.

9. Perusal of paragraph nos.5 to 10 of the affidavit filed in support of the instant transfer application will be relevant which are as under:

"5. That applicant is residing at District- Moradabad Uttar Pradesh. Address of the applicant is Smt. Sweta Singh W/O Manoj Kumar D/O Narayan Singh R/O 07 Ground Floor Archana Deep Home Bil, Soniya Degree Collage ke pass, Ram ganga Vihar Fase-2 District- Moradabad, U.P. Applicant is residing with mother father and unemployed brother who was suffering with Covid-19 and now days he is on bed, not feeling well.

6. That opposite party is Inspector Central Excise Custom, residing at Hathras Uttar Pradesh and his address is Manoj Kumar S/O Charan Singh R/O Nalwali Gali Viddayapati Nagar Near Mursan Gate District Hathrash U.P. while address of his office is Central Excise Custom Office Central GST 113/04 Sanjay Palace Civil Line Agra U.P.. Opposite party has mentioned his temporary address in the Case No. 626 of 2021 Manoj Kumar Vs. Smt. Sweta Singh under Section 13 A of Hindu Marriage Act.

7. That with ulterior motive opposite has not mentioned his permanent address in the case no. 626 of 2021 filed by him against applicant under Section 13 A of Hindu Marriage Act for divorce in the court of Principal family Judge Family Judge Hathrash.

8. That on mobile call, opposite party is continuously threaten to kill to the applicant if she will see in Hathrash for doing parvi in his divorce case. In fact opposite party is having some illicit relation with someone as such he is not at all interested with applicant and now he has filed present case for divorce with ulterior motive.

9. That some close person of the opposite party has come in the house of the applicant on 17.04.2022 and informed to the applicant that life of the applicant is in danger if she will enter in Hathrash district for doing parvi in her case as now a days opposite party is very much close with one Girl, having illicit relation.

10. That distance in between Moradabad to Hathrash is more than 200 KM and applicant is not in position to go in Hathrash as the life of the applicant is in danger. Father & brother of the applicant were suffering with Covit 19 and condition of the applicant is very critical because of abortion and she is not at all feeling well, her treatment is going on even then opposite party has not taken any care and also filed divorce petition."

10. Considering the averment made in the affidavit filed in support of the instant application as quoted above as well as the statement made by learned counsel for the opposite party that proceeding of Section 13 of Hindu Marriage Act be transferred from Hathras to Moradabad, the prayer of the applicant for transfer of the divorce petition from Hathras to Moradabad is genuine.

11. Considering the entire facts and circumstances of the case, the instant transfer application is allowed. The proceeding of Case No.626 of 2021 (Manoj Kumar Vs. Smt. Sweta Singh) under Section 13 -A of Hindu Marriage Act 1955 pending in the court of Principal Judge Family Court, Hathras is transferred to Family Court, Moradabad. The Family Court, Hathras is directed to transmit the record of the case to family Court Moradabad forthwith. The family Court Moradabad is directed to decide the aforementioned proceeding of the Case No.626 of 2021 (Manoj Kumar Vs. Smt. Sweta Singh) under Section 13 -A of Hindu Marriage Act 1955 in accordance with law expeditiously.

Order Date :- 7.8.2025 Rameez